

down—an officer is stripped of rank, will not be entitled to pension or other benefits and worse, will not even qualify as an ex-serviceman.

Even though the present case is shorn of all the sensational wheeling dealing of the *Tehelka* sting operation and other procurement scandals, it is perhaps the worst sendoff for army chief General Deepak Kapoor who retires three months from now. The COI, which was convened in October this year by Lt-General Singh, now tipped to be the next army chief, probed the controversial circumstances under which the Sukhna-based 33 Corps gave out a No Objection Certificate (NOC) to a private developer for building a girls' school on the 70-acre plot.

Besides Prakash (who is to retire on January 31, 2010), others indicted in the case include Lt-General P.K. Rath, the former General Officer Commanding-in-Chief (GOC-in-C) of the Sukhna-based 33 Corps and cleared to take over as deputy chief of army staff at army headquarters (the promotion order was quashed by the Defence Ministry) and Lt-General Ramesh Halgali, the GOC-in-C of the Jalandhar-based 11 Corps and

formerly Lt-General Rath's Chief of Staff at Sukhna. Based on the inquiry, Lt-General Singh made his recommendations to the army chief.

"The Court of Inquiry has been completed and received by the army headquarters. The proceedings of the inquiry will now be analysed as per the existing Standard Operating Procedures in accordance with military law," an army statement said. The army chief can, in the words of an army officer, choose to accept, dilute or reject the recommendations from his army commander.

Despite the army's massive internal clean-up ordered in the wake of the *Tehelka* case in 2001, at least 20 officers of the rank of brigadier and above have been indicted in various corruption-related cases. In the past three years alone, there have been at least 10 officers of the rank of general indicted in various cases of corruption and moral turpitude. Last year, the army dismissed Major General A.K. Lal found guilty of molesting a lady officer. Earlier this year, two major generals of the Army Ordnance Corps, Major General Anand Swaroop and Major General S.P. Sinha, faced charges of irregularities in military purchases.

Yet the Sukhna land case which

adds to this lengthening list is different. This is because the entire chain of command which gave the builder an NOC—beginning from the GOC of 33 Corps, his chief of staff, the brigadier (administration) and the Delhi-based military secretary for allegedly influencing the GOC's decision—stand indicted. The COI is the first stage in a military trial where all evidence is recorded before the army can decide a further course of action.

Army officials say that the army is too large an edifice to be irreparably hurt by corruption but it does have moral and ethical implications. "Yes there is corruption and we cannot live in denial," says a senior army officer. "Just as the old Licence-Permit Raj led to corruption, we should be looking at reforms by decentralising, bringing in greater transparency and making its officers accountable," he adds. The reform process has not begun yet because the army thinks merely handing out exemplary punishment will prevent other officers from crossing the line.

"Such cases must be dealt with promptly and disciplinary cases must be handed out exemplary punishment and this is what the army has been doing. We don't have a precedent of a 19-year delay like the Ruchika case," says former army chief General Ved Prakash

Darjeeling
Siliguri

WEST BENGAL

THE CONTENTIOUS LAND NEAR
THE SUKHNA MILITARY STATION



LT-GENERAL
P.K. RATH



LT-GENERAL
AVADESH
PRAKASH

THE GUILTY

The COI holds four officers blameworthy—Military Secretary Lt-General Avadesh Prakash, former 33 Corps Commander Lt-General P.K. Rath, Brigadier (Administration) Major General P.C. Sen and Major General Ramesh Halgali.

Based on recommendations of the Judge Advocate General branch, Eastern Army Commander Lt-Gen V.K. Singh recommends that action be taken.